

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202104888	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/14/2021 3:40 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/14/2023	Precinct: 32		
Date/Time CV Reported Sat, 08/14/2021 4:15 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 08/17/2021 1:55 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Melanie Paganmerritt	27997	946090	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Melanie Paganmerritt	Abuse: Police Officer Melanie Paganmerritt threatened to seize § 87(2)(b) property.	A . Exonerated
B . POF Melanie Paganmerritt	Abuse: Police Officer Melanie Paganmerritt interfered with § 87(2)(b) use of a recording device.	B . Substantiated
C . POF Melanie Paganmerritt	Abuse: Police Officer Melanie Paganmerritt damaged § 87(2)(b) property.	C . Unsubstantiated

Case Summary

On August 14, 2021, § 87(2)(b) filed the following complaint with Sgt. Alfred Gallicchio of the 32nd Precinct. On August 17, 2021, the CCRB received this complaint. On August 18, 2021, the undersigned received this complaint.

On August 14, 2021, at approximately 3:40 PM, PO Melanie Paganmerriitt was working a parking detail for the 32nd Precinct when she told § 87(2)(b) and his son, § 87(2)(b) that they could not park their vehicle where they did. After she had given him a summons, PO Paganmerriitt told § 87(2)(b) that she would tow his vehicle if he did not move it (**Allegation A: Abuse of Authority: Exonerated**). While PO Paganmerriitt was on the phone calling her department's tow truck, § 87(2)(b) approached her to take a photo of her shield number. PO Paganmerriitt moved her left arm across her body, not allowing § 87(2)(b) to take a photo at this moment (**Allegation B: Abuse of Authority: Substantiated**). As a result of this motion, § 87(2)(b) phone was knocked out of his hand and this allegedly caused damage to § 87(2)(b) phone (**Allegation C: Abuse of Authority: Unsubstantiated**). § 87(2)(b) was issued a summons for parking in a no parking zone (**Board Review 01**).

BWC footage was obtained from PO Paganmerriitt. The footage is located in IA #45 (**Board Review 02**) and is summarized in IA # 46 (**Board Review 03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Melanie Paganmerriitt threatened to seize § 87(2)(b) property.

§ 87(2)(b) stated that on August 14, 2021, at approximately 3:40 PM, he was preparing to load his van to drive his family to the airport when he noticed the no parking sign in front of his building. § 87(2)(b) went across the street and spoke with PO Tarrant, who told § 87(2)(b) that he could park in front of the building to load his family's luggage into the van, but that he needed to do it quickly. Less than five minutes later, PO Paganmerriitt approached § 87(2)(b) and said he had to move his car or he would get a summons. § 87(2)(b) told PO Paganmerriitt that PO Tarrant, who was now across the street, had given him permission to park there. PO Paganmerriitt disregarded this and again told § 87(2)(b) that if he did not move his van, she would issue him a summons. When § 87(2)(b) refused, she issued him a summons, and after doing so, again ordered § 87(2)(b) to move his van. § 87(2)(b) refused and said that since he had already been issued a summons, he was going to finish loading his van. PO Paganmerriitt ordered § 87(2)(b) to move his van approximately 15 times before eventually threatening to tow the vehicle if § 87(2)(b) did not comply. § 87(2)(b) ultimately moved his van and it was not towed (**Board Review 04**).

PO Paganmerriitt's statement was generally consistent with § 87(2)(b) (**Board Review 05**).

BWC footage from PO Paganmerriitt does not capture the threat to tow § 87(2)(b) van as the footage appears to begin after this point of the incident.

NYC Parking Violation Code 4-08 states no person shall stop, stand or park a vehicle, whether attended or unattended, other than in accordance with authorized signs, pavement markings, or other traffic control devices, unless necessary to avoid conflict with other traffic or in compliance with law or direction of any law enforcement officer or other person authorized to enforce these rules (**Board Review 06**).

§ 87(2)(g) § 87(2)(b) acknowledged that he was parked in a no parking zone and refused to comply with PO Paganmerriitt's orders to move his van, even after being issued a summons. § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: Police Officer Melanie Paganmerritt interfered with use of a recording device.

Allegation C – Police Officer Melanie Paganmerritt damaged § 87(2)(b) property. BWC from PO Paganmerritt shows, at 00:27, visible on the media player at the bottom of the screen, PO Paganmerritt appears to be in the process of writing a summons. § 87(2)(b) comes from behind his van and approaches PO Paganmerritt. § 87(2)(b) has his phone in his right hand and extends it towards PO Paganmerritt. § 87(2)(b) phone is about an arm's length away from PO Paganmerritt and appears to be pointed at the left side of her chest when she extends her right arm and slaps § 87(2)(b) phone out of his hand. § 87(2)(b) picks up his phone and continues to point it at PO Paganmerritt as she attempts to slap § 87(2)(b) phone out of his hand again. § 87(2)(b) appears to be arguing with PO Paganmerritt during this time though the footage does not have audio for this aspect of the incident (**Board Review 02**).

§ 87(2)(b) statement was generally consistent with the BWC footage. § 87(2)(b) told PO Paganmerritt that he wanted to take a picture of her shield and she said that he could. When PO Paganmerritt slapped § 87(2)(b) phone to the ground, causing the screen to crack and the sides to become scratched. When § 87(2)(b) told PO Paganmerritt that she had damaged his phone, she stated that she did not care (**Board Review 04**).

PO Paganmerritt's statement was somewhat inconsistent with the BWC footage. When § 87(2)(b) first approached PO Paganmerritt, he was an appropriate distance away from her. § 87(2)(b) was approximately four feet away from PO Paganmerritt, then moved into PO Paganmerritt's personal space. PO Paganmerritt did not remember if § 87(2)(b) had said anything when he approached her. At the same time, PO Paganmerritt heard a loud shout from someone off to the side, though she could not provide any additional details about this. In response, PO Paganmerritt stuck out her right arm and moved it across her body. Her intention was to make contact with § 87(2)(b) hand to get him out of her personal space. PO Paganmerritt never intended to hit § 87(2)(b) phone and stated she did not interfere with his recording device because she did not know if he was recording or not. PO Paganmerritt did not know whether § 87(2)(b) phone was damaged during the interaction because she did not know what state the phone was in prior to the encounter (**Board Review 05**).

Photos of § 87(2)(b) phone following the incident capture a cracked screen and scratched sides allegedly caused by PO Paganmerritt (**Board Review 07, 08**).

NYPD Administrative Guide Procedure 304-21 states that individuals have a right to lawfully observe and/or record police activity including, but not limited to, detentions, searches, arrests or uses of force. The right to lawfully observe and/or record police activity extends to individuals in public places such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other member of the public, or when a violation of law is committed by the individual(s) who are observing/recording (**Board Review 10**).

§ 87(2)(g)

§ 87(2)(g) based on the BWC footage, PO Paganmerriitt's physical actions are more consistent with trying to knock § 87(2)(b) phone out of his hand than to have him back up. This becomes more evident after § 87(2)(b) picks up his phone, moves back slightly, and continues to record PO Paganmerriitt. At this point, PO Paganmerriitt swipes at § 87(2)(b) again, which appears to be directed at his phone, more so than his hand. Although PO Paganmerriitt denied knowing whether § 87(2)(b) was trying to record the incident, BWC footage shows that there was nothing about § 87(2)(b) behavior to suggest that he was attempting to do anything else but record Paganmerriitt's shield.

§ 87(2)(g)

It is therefore recommended that **allegation B** be closed as **substantiated**.

BWC footage does not capture what, if any, damage § 87(2)(b) phone had sustained prior to this incident. § 87(2)(g)

It is recommended that **allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 11**).
- PO Paganmerriitt has been a member of service for 14 years and has been a subject in 4 additional CCRB complaints and 9 additional allegations, of which 2 were substantiated:
 - #201508695 involved substantiated allegations of detaining individuals against PO Paganmerriitt. The Board recommended command discipline A, which the NYPD imposed.
 - #202102051 involved substantiated allegations of a threat of arrest. The Board recommended command discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On July 18, 2022, a notice of claim inquiry was sent to the New York City Office of the Comptroller. The results will be uploaded to the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 08

Investigator:	Trevor Hackett Signature	Inv. Trevor Hackett Print Title & Name	07/18/2022 Date
---------------	-----------------------------	---	--------------------

Squad Leader:	Ethan De Angelo Signature	IM Ethan De Angelo Print Title & Name	7/18/2022 Date
---------------	------------------------------	--	-------------------

CCRB Case # 202104888

Reviewer: _____
Signature Print Title & Name Date